IN THE NATIONAL COMPANY LAW TRIBUNAL NEW DELHI
BENCH AT NEW DELHI

C.P. (CAA) 86/ND/2021
connected with
CA (CAA)NO.21/(ND)/2021

Under Sec. 230 & 232 of the Companies Act, 2013 read with other applicable provisions of the Companies Act, 2013 read with Companies (Compromises, Arrangements & Amalgamations) Rules, 2016

IN THE MATTER OF SCHEME OF AMALGAMATION:

AMONG

M/s. S M Perfumers Private Limited

...Transferor Company No.1/Petitioner Company No.1

AND

M/s. Sita Food Products Private Limited
...Transferor Company No.2/Petitioner Company No.2

AND

M/s. S P Fragrances Private Limited
...Transferor Company No.3/Petitioner Company No.3

WITH

M/s. Shanti Fragrances Private Limited
...Transferee Company/Petitioner Company No.4

CORAM:
HON'BLE SHRI DHARMINDER SINGH, MEMBER, JUDICIAL

HON'BLE MS. SUMITA PURKAYASTHA, MEMBER, TECHNICAL

ORDER PRONOUNCED ON : 08/06/2022.

ORDER

PER: MS. SUMITA PURKAYASTHA, MEMBER (TECHNICAL)

This joint petition has been jointly filed by the Petitioner Companies under the provisions of Sections 230 & 232 of the Companies Act, 2013 read with

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Rule 15(1) of the Companies (Compromise, Arrangements, Amalgamations) Rules, 2016 and the National Company Law Tribunal Rules, 2016 for the purpose of approving the proposed Scheme of Amalgamation (for brevity 'Scheme'), as contemplated between the Petitioner Companies and their respective shareholders. The copy of the Scheme has been placed on record.

2. The present petition has been filed jointly by the Transferor Company Nos.1 to 3 and Transferee Company (hereinafter together called the "Petitioner Companies"). It is represented that the registered office of the Petitioner Companies being situated in Delhi, therefore, lied with this Tribunal.

3. A perusal of the petition discloses that the first motion application bearing C.A. No. (CAA) No. 21 /ND/2021 was jointly filed by the Petitioner Companies. Based on the averments made in the said application the Tribunal vide order dated 07.06.2021 dispensed with the requirement of convening the meetings of the equity shareholders, secured creditors and unsecured creditors of the respective Petitioner Companies.

4. The appointed date as fixed for the proposed scheme of Amalgamation is September 01,2020 or such other date as may be approved by the National Company Law Tribunal.

5. The petitioner companies vide order dated 03.09.2021 were directed to issue individual notices to the (i) Regional Director, Ministry of Corporate Affairs, (ii) Registrar of Companies, NCT of Delhi and Haryana, (iii) Official Liquidator, Lok Nayak Bhavan, Delhi (iv) concerned income tax department. The Petitioner Companies have jointly filed an affidavit of service in respect of notice of petition to the statutory authorities dated 12.10.2021 in compliance of the order dated 03.09.2021 affirming that notice of the proposed scheme of amalgamation along with all the annexures and copy of the order dated 03.09.2021 had been served on the

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Regional Director, Ministry of Corporate Affairs, Registrar of Companies, NCT of Delhi and Haryana, concerned Income-Tax Department and the Official Liquidator respectively.

6. The Petitioner Companies vide order dated 03.09.2021 were directed to advertised the notice of hearing in the newspapers namely, "Business Standard" (English, Delhi edition) and "Veer Arjun" (Hindi, Delhi edition). The Petitioner Companies have filed the affidavit in respect of notice of hearing on 12.10.2021 in compliance of the order dated 03.09.2021 affirming that notice of hearing was duly advertised in Business Standard (English, Delhi edition) and "Veer Arjun" (Hindi, Delhi edition) on September 29,2021.

7. The tribunal vide its order dated 16.03.2022 had granted the last opportunity to the statutory authorities to file the reply in the matter, if not filed within the period of 15 days from the date order, failing which the right to file reply stands closed and no further opportunity shall be given

8. The reply of the Income Tax Department report of the Official Liquidator have been filed. The income tax department in its report submitted that there are no demand / proceedings pending against the petitioner companies and the department has no objection to the proposed scheme of amalgamation among the petitioner companies. The report of the official liquidator has been filed vide affidavit dated 25.03.2022 stating that the said scheme is in no manner prejudicial to the interest of the members or to the public interest as per the provisions of the Companies Act, 2013.

9. The Regional Director, Northern Region has not filed its reply. Be that as it may, in order to protect the interest, it is made clear there shall no default in filing the statutory return /documents with the RoC or with the Regional Director. Further, the Petitioner Companies have given affidavit

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under section 230 (3) stating that no prosecution has been filed, no complaints are pending and no inspection or investigation has been conducted in respect of the petitioner companies.

10. The certificate of the statutory auditor of the respective Petitioner Companies certifying that the accounting treatment in the Scheme is in conformity with the accounting standards in terms of Section 133 of the Companies Act,2013 is on record.

11. We have heard the counsels for the petitioner companies and also considered the representation made by the Official Liquidator and the Income Tax Department. In the reply filed by the Income Tax Department, it has been confirmed that no demand/proceedings pending against the petitioner companies and the department has no objection to the proposed scheme of amalgamation.

12. In view of the foregoing, upon considering the approval accorded by the members and creditors of all the Petitioner Companies to the proposed Scheme, and no objections being raised by the office of the official liquidator and the concerned income tax department there appears to be no impediment in granting sanction to the Scheme.

13. Consequently, the sanction is hereby granted to the Scheme under sections 230-232 of the Companies Act, 2013 and the Company (Compromises, Arrangements and Amalgamations) Rules, 2016. The sanctioned Scheme of amalgamation shall be binding on all the petitioner companies and on all their respective shareholders and creditors.

14. The Petitioner Companies shall also be bound to comply with the statutory requirements in accordance with law. Notwithstanding the above, if there is any deficiency found or, violation committed qua any enactment, statutory rule or regulation, the sanction granted by this court to the scheme will not come in the way of action being taken, albeit,

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in accordance with law, against the concerned persons, directors and officials of both the petitioner companies.

15. While approving the Scheme as above, we further clarify that this order should not be construed as an order in any way granting exemption from payment of stamp duty, Statutory dues or any other charges, if any, and payment in accordance with law or in respect to any permission/ compliance with any other requirement which may be specifically required under any law.

16. This tribunal further order that upon scheme of Amalgamation coming into effect;

    a. That Transferor Companies shall stand dissolved without being wound up and without any requirement of any further act or deed by the parties in accordance with the Act;

    b. All the contracts, deeds, bonds, insurance, letters of intent, undertakings, arrangements, policies, agreements and such other instruments entered into with and/ or given by, as the case may be, the various Central/ State Governments, Statutory or regulatory body or agencies or third parties with respect to the Transferor Companies, shall without any further act, deed, matter or thing, stand transferred to and vested in the Transferee Company;

    c. All business activities engaged in by the Transferor Companies shall be continued by the Transferee Company under its name;

17. The Petitioner Companies shall within thirty days of the date of the receipt of this order cause a certified copy of this order to be delivered to the Registrar of Companies for registration and on such certified copy being so delivered, the Registrar of Companies shall place all documents relating to the transferor companies and registered with them and shall consolidate the files

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of the companies, is accordingly duly approved and sanctioned in terms of the above.

18. Any person interested shall be at liberty to apply to the Tribunal in the above matter for any directions that may be necessary.

The petition stands disposed of in the above terms.
Let copy of the order be served to the parties.

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(SUMITA PURKAYASTHA)
MEMBER (T)

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(DHARMINDER SINGH)
MEMBER (J)